

DISCOVER BANK VS. DRISKILL

CASE NUMBER: 25CVG-00740

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The Motion was properly noticed, and Plaintiff Discover Bank has not filed an opposition.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

FIRST-CITIZENS BANK & TRUST COMPANY VS. RISE CUSTOM APPAREL LLC, ET AL.

CASE NUMBER: 26CV-0209773

Tentative Ruling on Motion to Strike: Plaintiff moves to strike the Answer filed by Defendant Rise Custom Apparel, LLC, enter default, and impose sanctions. The grounds are that Defendant is impermissibly proceeding in pro per. The matter is properly noticed and is unopposed.

Meet and Confer. Code of Civil Procedure 435.5(a) provides that before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. The Declaration of Plaintiff’s counsel indicates only that a meet and confer letter was sent. This does not establish compliance with the statute.

Standard for Motion to Strike. A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Plaintiff moves to strike the Answer on the grounds that Defendant is not represented by counsel, and is proceeding in pro per. Plaintiff is correct that “[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.”]; *Blue Water Sunset, LLC v. Markowitz* (2011) 192 Cal.App.4th 477, 491 [122 Cal. Rptr. 3d 641] [“The limited liability companies may wish to take an active role in the litigation. If so, the weight of authority indicates that the limited liability companies must obtain independent counsel.”]” *Norman v. Strateman* (2025) 112 Cal.App.5th 92, 105, fn. 5.

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. A pleading may be stricken only upon terms the court deems proper. It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action.” *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146-1147 (internal citations omitted).

“...it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court. First and foremost, this approach honors the cornerstone jurisprudential policies that, in furtherance of justice, complaints are to be liberally construed (§ 452) and disputes should be resolved on their merits.” *Id.* at 149.

Here, the Court will exercise its discretion to treat the Defendant's failure to be represented by an attorney as a defect that may be corrected. The Court will permit Defendant Rise Custom Apparel, LLC the opportunity to correct this defect by obtaining representation. The clerk is **directed** to issue an Order to Show Cause re retention of counsel. Defendant will have 30 days from notice of issuance of the OSC to retain counsel and file an association of counsel in this matter. The matter is set for hearing on the Order to Show Cause, as well as for further proceedings on the Motion to Strike, on **Monday, November 2, 2026 at 8:30 a.m. in Department 64.**

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Further Responses: Plaintiffs move for an order compelling further responses to: 1) Plaintiff's Form Interrogatories, Set One (Nos. 3.7, 4.1, 12.1-12.3, 12.5-12.7, 14.1, 14.2, 16.1, 17.1, 50.1 and 50.3); 2) Special Interrogatories, Set One (Nos. 1-27, 29-36, 40, 42, 43, 47-52); 3) Requests for Admission, Set One (Nos. 11, 35, 36); and 4) Requests for Production, Sets One and Two (Nos. 1-16; 18-101). Plaintiffs further request the responses be verified, complete and straightforward, free of unsupported objections, compliant with CCP § 2031.280 by identifying documents responsive to each request, and where responsive documents do not exist or cannot be produced, state so clearly. Plaintiffs also request sanctions. Defendants oppose the Motion.

Merits. On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show “good cause” for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet